

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES	
2. AMENDMENT/MODIFICATION NUMBER		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable)	
6. ISSUED BY		CODE		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER	
				☐		9B. DATED (SEE ITEM 11)	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.							
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.						
☐							
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).						
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:						
☐	D. OTHER (Specify type of modification and authority)						
E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
15B. CONTRACTOR/OFFEROR				15C. DATE SIGNED		16B. UNITED STATES OF AMERICA	
16C. DATE SIGNED							
(Signature of person authorized to sign)				(Signature of Contracting Officer)			

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

INFORMATION	FROM	TO
Construction Project Title	Alternative Contracting Methods (ACM) MACC	Alternative Construction Methods (ACM) MACC

Miscellaneous text in this section has been added to:

AMENDMENT 0001

Contract: N62473-25-R-3426

RFP Issue Date: 12 September 2025

Subject: IDIQ UNRESTRICTED MACC FOR NEW CONSTRUCTION, RENOVATION, AND REPAIR OF COMMERCIAL AND INSTITUTIONAL FACILITIES USING ALTERNATIVE CONSTRUCTION METHODS AT VARIOUS GOVT INSTALLATIONS LOCATED IN CALIFORNIA, ARIZONA, NEVADA, UTAH, COLORADO, AND NEW MEXICO

The purpose of this Amendment is to revise Instructions to Offerors, revise the Financial Questionnaire, and provide responses to RFIs.

1. Revise Paragraph 2. Definitions of section 00 21 00 - Instructions as follows:

Add:

ACM Vendor: A subcontractor or supplier who's primary role is the fabrication, assembly and/or installation of the ACM method for a project.

2. Revise the Section 00 21 00 - Instructions as follows:

Delete:

2. Proposal Submittal Requirements

A cover letter shall accompany the proposal. The cover letter shall include--

- (a) The solicitation number;
- (b) The name, address, telephone number, and email address of the Offeror and Lead Design Firm(s);
- (c) The Unique Entity ID, CAGE Code, and Tax Identification Number (TIN) of the Offeror;
- (d) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;
- (e) Names, titles, phone numbers, and email addresses of persons authorized to negotiate on the Offeror's behalf with the Government in connection with this solicitation and;
- (f) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

In addition to the cover letter, the Offeror shall submit an Offeror's Team Consent Form for each major subcontractor/teaming partner (e.g., team member, subcontractor (i.e., Lead Design Firm(s)), parent company, subsidiary, or other affiliated company, etc.) identified in the Offeror's proposal.

Proposals submitted in response to this solicitation shall be formatted as follows:

Phase One:

Cover Letter

First two pages of SF1442 - with blocks 14 through 20c completed

Surety Form

Offeror's Team Consent Form(s)

Section 00 45 00 - Representations and Certifications with completed FAR and DFARS provisions

VETS-4212 Report Submission Confirmation (or Statement of Non-applicability)

~~# Financial Questionnaire (to be completed and submitted by financial institution)~~

Factor 1, Technical Approach (Exhibit "A," Organizational Chart, and Signed Copies of Agreements or Letters of Commitment for Each Member of the Offeror's Team)

Factor 2, Experience (Exhibit "B")

Factor 3, Past Performance (Exhibit "C" or CPARS/CCASS/ACASS evaluations)

(Evaluations should immediately follow the project shown on Exhibit "B" to which they pertain)

Factor 4, Safety (Exhibit D); Address any adverse past performance issues, if applicable

Procurement Integrated Enterprise Environment (PIEE) Instructions for electronic submission of Phase One proposals:

Phase One proposals shall be submitted electronically using the Department of Defense (DoD) Solicitation Module in the Procurement Integrated Enterprise Environment (PIEE) located at <https://piee.eb.mil/> and will submit their complete Phase One proposal in one (1) single file, formatted in Portable Document Format (PDF) with a .pdf file extension.

In order to submit a proposal through the PIEE Solicitation Module, you must be registered as a Proposal Manager in the DoD PIEE Suite located at <https://piee.eb.mil/>. The PIEE Solicitation Module is the only electronic commerce method authorized for the submission of Phase One proposals in response to this solicitation. Submissions outside of the PIEE Solicitation Module will not be considered. The PIEE Solicitation Module will record the date and time of proposal submission. The date and time of proposal submission recorded in the PIEE Solicitation Module shall govern the timeliness of any proposal submission. The maximum allowable file size for the PIEE Solicitation Module is 1.9GB.

LATE SUBMISSIONS WILL NOT BE CONSIDERED.

It is an Offeror's responsibility, when transmitting its proposal electronically, to ensure the proposal's timely delivery by transmitting the proposal sufficiently in advance of the time set for receipt of proposals to allow for timely receipt by the Government no later than the date and time stated in Block 13 of the SF1442. Offerors shall allow adequate time to upload files, which may be slower for non-DoD users, and to avoid other technical difficulties that may be encountered. An Offeror risks the late receipt and rejection of a proposal where it delays transmitting its proposal until the last few minutes before the time set for receipt of proposals. Proposals that are received after the stated date and time in Block 13 of the SF1442 will not be considered.

Offerors are responsible for submitting their proposal in the format specified, consistent with requirements stated elsewhere in this solicitation. Offerors are asked to submit only the information/exhibits required. Page limits, if stipulated, must be adhered to. Files that cannot be opened, or are otherwise missing the required content are the responsibility of the Offeror.

Revise:

2. Proposal Submittal Requirements

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In addition to the cover letter, the Offeror shall submit an Offeror's Team Consent Form for each major subcontractor/teaming partner (e.g., team member, subcontractor (i.e., Lead Design Firm(s)), parent company, subsidiary, or other affiliated company, etc.) identified in the Offeror's proposal.

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Section 00 45 00 - Representations and Certifications with completed FAR and DFARS provisions

VETS-4212 Report Submission Email Confirmation (or Statement of Non-applicability)

Financial Questionnaire (to be completed by financial institution). The questionnaire shall be submitted:

1) Directly to the Contract Specialist by the financial institution or;

2) By the Offeror with the completed financial questionnaire signed by an authorized representative of the Offeror and a letter signed by an official financial institution representative with their contact information.

Factor 1, Technical Approach (Exhibit "A," Organizational Chart, and Signed Copies of Agreements or Letters of Commitment for Each Member of the Offeror's Team)

Factor 2, Experience (Exhibit "B")

Factor 3, Past Performance (Exhibit "C" or CPARS/CCASS/ACASS evaluations)

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Note:

1. The offeror must acknowledge receipt of all amendment(s) on the offer schedule.
2. All other paragraphs, provisions, and conditions to this solicitation remain unchanged.

Section 00 73 00 - Supplementary Conditions

Miscellaneous text in this section has been modified to:

SECTION 00 73 01

CONTRACT TYPE/PERFORMANCE

SPECIAL CONTRACT REQUIREMENTS (AUG 2025)

1. GENERAL OVERVIEW OF MULTIPLE AWARD CONSTRUCTION CONTRACT (MACC)

A Multiple Award Construction Contract is a contract awarded from a single solicitation, and may result in award to multiple contractors. This procurement uses the two-phase design-build selection procedures and consists of one solicitation covering both phases with the intent to award up to eight (8) Indefinite Delivery Indefinite Quantity (IDIQ) Construction Contracts to the Offeror(s) whose proposal(s), conforming to the RFP, will be most advantageous to the Government resulting in the Best Value, price and other non-price related factors considered.

The best value continuum source selection process to be used for this acquisition is the tradeoff analysis process as described in FAR 15.101-1. This process allows for a tradeoff between non-price factors and price and allows the Government to accept other than the lowest priced proposal or other than the highest technically rated proposal to achieve a best-value contract award.

The Government reserves the right to award only one contract covering the project identified in the RFP if the minimum guarantee of funds is not available for three or more awards. The Government reserves the right not to award the Proposed Task Order (PTO) 0001. The Government reserves the right to substitute or add other design-build projects that meet the scope of the MACC. Subject to the availability of funds, the Government reserves the right to delay or cancel the award of PTO 0001 at time of the basic contract award. If the task order is not awarded with the basic award, the guaranteed minimum will be awarded.

2. CONTRACT TYPE

This is an indefinite delivery indefinite quantity (IDIQ) contract with no pre-established fixed contract prices. The actual amount of work to be performed and the time of such performance will be determined by a Contracting Officer, who will issue written Task Orders to the contractor. Award of Task Orders will be on a firm fixed price basis. This is not a requirements contract.

3. SET-ASIDE: This contract is unrestricted; however, price evaluation preference will be given to HUBZone Small Business firms, in accordance with FAR 52.219-4.

4. NAICS CODE: 236220 Size Standard \$ 45 million applies to this general construction contract.

5. DESCRIPTION OF WORK:

The work to be acquired under this contract is for new construction, renovation, and repair within the NAICS code listed, primarily by design-build or secondarily by design-bid-build, for new construction, repair, and renovation of commercial and institutional buildings

using [Alternative Construction Methods \(ACM\)](#) at various Government installations located in California, Arizona, Nevada, Utah, Colorado, and New Mexico. The area of coverage may also extend to the entire NAVFAC area of responsibility (AOR) as approved by the NAVFAC Southwest (SW) Chief of Contracting Office (CCO). However, it is anticipated that the majority of the work will be performed in California.

Types of project may be similar to: modular components, offsite prefabricated industrial construction, tension fabric structures, and pre-engineered metal or fiber reinforced panel buildings.

In support of design-build strategies, each Offeror shall possess in-house capabilities or employ the services of Lead Architect-Engineering (A-E) Design Firm(s) experienced in the design development and coordination of projects within the scope of this contract. In an effort to avoid a potential conflict of interest, Offerors are encouraged to offer multiple design teams to satisfy a variety of project types projected to be awarded during the term of the contract(s). The Offeror and the proposed Lead Design Firm(s) for the basic contract(s) will be evaluated as a team. Lead A-E Design Firm(s), their subsidiaries and affiliates that are involved at the RFP or design stage of a particular project under another contract will not be allowed to propose or be used on a Task Order for that project under this contract. All professional disciplines shall be registered and/or certified in their discipline. In any state requiring specialized knowledge of local permitting or regulatory agency requirements, the professional discipline shall be registered or certified in that state.

6. CONTRACT DURATION, LIMITS, AND AMOUNTS

a. Term of contract: Each of the resulting contracts will be for a base period of two (2) years (or less, as determined by the Contracting Officer if the maximum contract amount is ordered by the Government).

b. Options: Each contract contains three (3) option periods of one-year each for a total maximum duration of five (5) years or estimated maximum dollar value (see paragraph c. below), whichever occurs first. The Government has the option to extend the term of the contract in accordance with the contract clause entitled "Option to Extend the Term of the Contract, FAR 52.217-9." The Government may extend the contract for three (3) option periods of one-year by written notice to the contractor within the performance period specified in the Schedule, provided that the Government will give the contractor a preliminary written notice of its intent to extend at least sixty (60) days before the contract expires. The preliminary notice does not commit the Government to an extension.

c. Amounts: The estimated maximum dollar value, including the base period and all option periods, for all contracts combined is \$5,000,000,000.

d. Task Order Limitations: Estimated Task Order range is between \$15,000,000 and \$250,000,000. Task Orders may fall below or above this limit; however, contractors are not obligated to accept such Task Orders under the general terms of the contract.

e. Minimum Guarantee: The Government makes no representation as to the number of Task Orders or actual amount of work to be ordered, however, during the term of the contract, a minimum of \$1,000 is guaranteed to each awardee. Contractors are not guaranteed work in excess of the minimum guarantee specified herein.

7. PERFORMANCE OF WORK/LIMITATIONS ON SUBCONTRACTING: All work under this contract shall be in accordance with Code of Federal Regulations (CFR), Title 13, Part 121--Small Business Size Regulations, Part 124--8(a) Business Development/Small Disadvantaged Business Status Determinations, Part 125-- Government Contracting Programs, and Part 126--HUBZone Program; and FAR Part 19--Small Business Programs and Part 36--Construction and Architect-Engineer Contracts, as applicable.

a. Small Business Set-Aside Procurements (including Total Small Business Set-Aside, Total 8(a) Set- Aside, Total HUBZone Set-Aside, and Total Service-Disabled Veteran-Owned Small Business Set-Aside contracts): The prime contractor must comply with the applicable limitations on subcontracting in accordance with FAR Clause 52.219-14, Limitations on Subcontracting, by the end of the base term of the contract and by the end of each subsequent option period as follows:

In the case of a contract for general construction, the prime contractor shall not pay more than 85% of the amount paid by the Government for contract performance (excluding the cost of materials) to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

In the case of a contract for construction by special trade contractors, the prime contractor shall not pay more than 75% of the amount paid by the Government for contract performance (excluding the cost of materials) to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

A joint venture agrees that, in the performance of the contract, the applicable percentage specified in FAR Clause 52.219-14 (e) will be performed by the aggregate of the joint venture participants.

Additional requirements apply for the following types of set-asides:

(1) Total 8(a) Set-Aside:

If the prime contractor is an 8(a) joint venture or Mentor Protege, performance of work is as follows: For any 8(a) set-aside contract, including those between a protege and a mentor authorized by 13 CFR Sec. 124.520, the joint venture must perform the applicable percentage of work required by 13 CFR Sec. 124.510, and the 8(a) partner(s) to the joint venture must perform at least 40% of the work performed by the joint venture. The work performed by the 8(a) partner(s) to a joint venture must be more than administrative or ministerial functions so that the 8(a) partners gain substantive experience. The amount of work done by the partners will be aggregated and the work done by the 8(a) partner(s) must be at least 40% of the total done by all partners. In determining the amount of work done by a non-8(a) partner, all work done by the non-8(a) partner and any of its affiliates at any subcontracting tier will be counted. (See 13 CFR Sec. 124.513.)

Indefinite delivery and indefinite quantity 8(a) contracts: 13 CFR Sec. 124.510 applies as follows: In order to ensure that the required limitations on subcontracting requirements on an indefinite delivery or indefinite quantity 8(a) award are met by the Participant, the Participant cannot subcontract more than the required percentage to subcontractors that are not similarly situated entities for each performance period of the contract (i.e., during the base term and then during each option period thereafter).

(2) Total HUBZone Set-Aside:

If the prime contractor is a HUBZone certified joint venture or Mentor Protege, performance of work is as follows: For any HUBZone set-aside contract to be performed by a joint venture between a certified HUBZone small business concern and another certified HUBZone small business concern, the aggregate of the certified HUBZone small business concerns to the joint venture, not each concern separately, must perform the applicable percentage of work required by 13 CFR Sec. 125.6. For any HUBZone set-aside contract to be performed by a joint venture between a certified HUBZone small business concern and a small business concern or its SBA- approved mentor authorized by 13 CFR Sec. 125.9 or 13 CFR Sec. 124.520, the joint venture must perform the applicable percentage of work required by 13 CFR Sec. 125.6, and the certified HUBZone small business concern partner to the joint venture must perform at least 40% of the work performed by the joint venture. The work performed by the certified HUBZone small business concern partner to a joint venture must be more than administrative or ministerial functions so that it gains substantive experience. The amount of work done by the partners will be aggregated and the work done by the certified HUBZone small business concern partner must be at least 40% of the total done by the partners. In determining the amount of work done by a mentor participating in a joint venture with a HUBZone qualified protege, all work done by the mentor and any of its affiliates at any subcontracting tier will be counted.

(3) Total Service-Disabled Veteran-Owned Small Business Set-Aside:

If the prime contractor is a Service-Disabled Veteran-Owned small business joint venture or Mentor Protege, performance of work is as follows: For any Service-Disabled Veteran-Owned small business set-aside contract, including those between a protege and a mentor authorized by 13 CFR Sec. 125.9, the joint venture must perform the applicable percentage of work required by 13 CFR Sec. 125.6, and the Service-Disabled Veteran-Owned Small Business concern partner(s) to the joint venture must perform at least 40% of the work performed by the joint venture. The work performed by the Service-Disabled Veteran-Owned small business concern

partner(s) to a joint venture must be more than administrative or ministerial functions so that they gain substantive experience. The amount of work done by the partners will be aggregated and the work done by the Service- Disabled Veteran-Owned small business concern partner(s) must be at least 40% of the total done by all partners. In determining the amount of work done by a non-Service-Disabled Veteran-Owned small business concern partner, all work done by the non-Service-Disabled Veteran-Owned small business concern partner and any of its affiliates at any subcontracting tier will be counted.

b. Unrestricted Procurements: As stated in FAR Clause 52.236-1, Performance of Work by the Contractor, the prime contractor shall perform on the site and with its own organization, work equivalent to at least 20% of the total amount of work to be performed under the contract.

8. SUBCONTRACTING PLAN

Any large business required to submit a Subcontracting Plan in accordance with FAR 19.7 will compile a consolidated report at least semi-annually or when directed by the Contracting Officer when data is required for reporting purposes. Reporting responsibilities shall be in accordance with FAR Clause 52.219-9, Small Business Subcontracting Plan. Submit the Individual Subcontract Report (ISR) and the Summary Subcontract Report (SSR) using the Electronic Subcontracting Reporting System (eSRS) at <https://www.esrs.gov/>, following the instructions in the eSRS.

9. WORK BY THE GOVERNMENT

The Government reserves the right to undertake performance by Government forces, for the same type or similar work as contracted herein, as the Government deems necessary or desirable, and to do so will not breach or otherwise violate this contract.

10. COMMENCEMENT OF WORK

No work under this contract will commence until such time as the Contracting Officer issues a Task Order, either in writing or orally. Oral Task Orders will be confirmed by the issuance of a written Task Order within five (5) working days.

11. PLACE OF PERFORMANCE

The place of performance will be designated on each individual Task Order.

12. PROPOSAL PREPARATION COSTS

The costs for preparation of Task Order proposals, if required under this contract, shall be the responsibility of the contractor and not directly reimbursable. Each Task Order awarded will include at a minimum all labor wages, management, supervision, mobilization, material, and equipment costs. The contractor shall furnish all project management, planning, estimating, labor, transportation, materials, equipment, tools, supervision, design if applicable, and all other associated costs necessary to fulfill the requirements of the Task Order.

13. DEFINITIONS

Where "as shown," "as indicated," "as detailed," or words of similar importance are used, it shall be understood that reference to the drawings accompanying this specification is made unless stated otherwise. Where "as directed," "as required," "as permitted," "approved," "acceptance," or words of similar importance are used, it shall be understood that the direction, requirements, permission, approval, or acceptance of the Contracting Officer is intended unless stated otherwise. As used herein, "provided" shall be understood to mean "provided complete in place," that is "furnished and installed."

14. BUY AMERICAN PROVISIONS

The following Buy American provisions should be included in the task order RFP. Use the FAR prescriptions for each provision to determine which apply to the specific task order based on the dollar value.

FAR Clause 52.225-9, Buy American--Construction Materials and FAR Clause 52.225-10, Notice of Buy American Requirement--Construction Materials.

FAR Clause 52.225-11, Buy American--Construction Materials under Trade Agreements and FAR Clause 52.225-12, Notice of Buy American Requirement--Construction Materials under Trade Agreements.

FAR Clause 52.225-11, Buy American--Construction Materials under Trade Agreements with Alternate I and FAR Clause 52.225-12, Notice of Buy American Requirement--Construction Materials under Trade Agreements with Alternate II.

15. BID BOND

For each Task Order over \$150,000, the contractor shall furnish a bid guarantee in the amount of 20% of the proposal price or \$3,000,000, whichever is less.

16. PERFORMANCE AND PAYMENT BONDS

Performance and payment bonds in the amount of 100% (unless otherwise stipulated on the individual Task Order) will be required for each Task Order and shall be submitted for approval to the Contracting Officer within 15 days (unless otherwise stipulated on the individual Task Order) of award of a Task Order. Commencement of construction is contingent upon approval of required bonds.

17. REQUIRED INSURANCE

a. Within fifteen days after award of each Task Order under this contract, the contractor(s) shall furnish the Administrative Contracting Officer a Certificate of Insurance as evidence of the existence of the following insurance coverage amounts not less than the amount specified below in accordance with FAR Clause 52.228-5, Insurance - Work on a Government Installation.

COVERAGE:

- Comprehensive General Liability: \$500,000 per occurrence
- Automobile Liability: \$200,000 per person, \$500,000 per occurrence for bodily injury; \$20,000 per occurrence for property damage
- Workmen's Compensation: As required by Federal and State Worker's compensation and occupational disease laws
- Employer's Liability Coverage: \$100,000 except in states where worker's compensation may not be written by private carriers
- Others as required by state law

- b. Above insurance coverages are to extend to contractor personnel operating Government owned equipment and vehicles.
- c. The Certificate of Insurance shall provide for thirty (30) days written notice to the Contracting Officer by the insurance company prior to cancellation or material change in policy coverage. Other requirements and information are contained in the aforementioned "Insurance" clause.

18. CONSTRUCTION WAGE REQUIREMENTS STATUTE WAGE DETERMINATIONS

Applicable Construction Wage Rate Requirements statute (formerly known as the Davis-Bacon Act) general wage determinations (FAR 22.404-1) will be required for Task Orders awarded under this contract and will be incorporated into the Task Orders. Each Task Order will specify the applicable wage determination; however, the

contractor shall be responsible for obtaining them. The applicable Construction Wage Rate Requirements Statute general wage determination can be obtained from the SAM.gov website at <https://sam.gov> under Wage Determinations.

19. DRAWINGS

All drawings, if applicable, accompanying Task Orders will be considered to be a part of the scope of work.

20. TASK ORDER PERFORMANCE PERIOD

FAR Clause 52.211-10, Commencement, Prosecution, and Completion of Work, will be incorporated into each Task Order identifying the construction schedule. The Government reserves the right to negotiate a Task Order's performance period if determined to be in the best interest of the Government.

21. LIQUIDATED DAMAGES

FAR Clause 52.211-12, Liquidated Damages - Construction, will be incorporated into the resultant Task Order identifying the liquidated damages rate applicable to that Task Order. If the contractor fails to complete the work within the time fixed in the Task Order or any extension thereof, the contractor shall pay to the Government as liquidated damages for each Task Order, the rate cited in the Task Order.

22. PREAWARD SITE INSPECTIONS

Upon receipt of the scope of work, including applicable drawings, and following a brief time period for reviewing the documents, the contractor shall inspect the job site. The prospective superintendent shall attend the site visit. Any deficiencies, conflicts, or other areas of concern existing in the scope of work and applicable drawings should be brought to the attention of the Contracting Officer, in writing. The contractor shall also notify the Contracting Officer, in writing, upon observing any features in the design that appear to be ambiguous, confusing, conflicting, or erroneous.

23. SUPERVISION

The contractor shall provide supervision in accordance with FAR Clause 52.236-6, Superintendence by the Contractor, for each Task Order.

24. SUBCONTRACTING RESPONSIBILITIES

The contractor shall be responsible for the management and performance of all subcontractors. The contractor shall ensure subcontractors are competent and capable of handling all assigned work. The contractor shall ensure Task Orders are completed within the stated requirements.

The contractor is responsible for ensuring subcontracting opportunities are made available to responsible small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.

25. NOTICE OF CONSTRUCTIVE CHANGES

No order, statement, or direction of the Contracting Officer, an authorized representative of the Contracting Officer whether or not acting within the limits of his authority, or any other representative of the Government, shall constitute a change order under the "Changes" clause of this contract or entitle the contractor(s) to an equitable adjustment of the price or delivery schedule, unless such a change is issued in writing and signed by the Contracting Officer.

26. PAYMENTS - WAWF

Invoicing procedures will be as stated in accordance with DFARS Clause 252.232-7003 titled "Electronic Submission of Payment Requests and Receiving Reports," this contract requires use of the DoD Wide Area Workflow (WAWF) Receipt and Acceptance system for the submission of invoices. Submittal information is included in DFARS Clause 252.232-7006 titled "Wide Area Workflow Payment Instructions" of the individual Task Order award document.

27. PROJECT KICKOFF MEETING

Prior to commencing work under a Task Order, the contractor shall meet with the Administrative Contracting Officer and/or designated technical personnel at a mutually agreeable time to discuss and develop mutual understandings concerning schedule and administering work.

28. OVERHEAD RATES FOR CONSTRUCTION CONTRACTS

In an effort to avoid problems during negotiations, it is imperative that contractors are aware that they must consistently use a single distribution base for computing job site overhead. A contractor must use either a per diem rate or a percentage mark-up to compute job site overhead costs on all changes. In accordance with Federal Acquisition Regulation (FAR) 31.105(d)(3), "Cost incurred at the job site incidental to performing the work, such as the cost for superintendence, timekeeping and clerical work, engineering, utility costs, supplies, material handling, restoration and cleanup, etc., are allowable as direct or indirect costs, provided the accounting practice used is in accordance with the contractor's established and consistently followed cost accounting practices for all work."

In addition, FAR 31.203, "Indirect costs", subparagraph (b), requires grouping of indirect costs "so as to permit distribution of the grouping on the basis of the benefits accruing to the several cost objectives," and then selection of "a distribution base common to all cost objectives to which the grouping is to be allocated." The reference to a "distribution base" requires use of a single distribution base for allocating a given overhead pool to cost objectives. "A contractor may choose any acceptable distribution base for allocating its job site overhead pool to particular cost objectives, but not more than one."

Switching between a time distribution base (per diem rate) and a direct cost distribution base (percentage markup) will not be allowed as it is considered a violation of the FAR requirements for a single distribution base for allocating a given overhead pool, as well as Generally Accepted Accounting Principles (GAAP), which are consistently applied.

29. PARTNERING

Partnering is a structured process, as well as philosophy of doing business with contractors and customers that recognizes common goals through communication and teamwork. It helps create an environment where trust and teamwork prevent disputes, foster good working relationships to everyone's benefit, and facilitate the completion of a successful contract. In support of the command's goals of teamwork and customer satisfaction, our policy is to practice the philosophy of Partnering on every contract we administer. The contractor's key personnel may be required to attend formal partnering for the basic contract. In addition, formal partnering may be required prior to and/or during performance of an individual Task Order, if determined necessary by the Government. Key personnel are defined as the Project Manager, Assistant Project Manager, Superintendent, CQC representative, major subcontractors, and specialized supplementary personnel. The contractor shall pay all costs associated with the partnering effort. The participants shall bear their own costs for meals, lodging, and transportation associated with partnering.

30. PERFORMANCE EVALUATIONS

The Administrative Contract Office will complete a contractor's performance evaluation for input into the Contractor Performance Assessment Reporting System (CPARS) database. The evaluation will take into account all aspects of the contractor's performance. Interim performance evaluations may be completed at any time the

contractor's performance is considered less than satisfactory or to provide feedback on the design portion of a design-build Task Order. Contractors will be provided a copy of the performance evaluation and an opportunity to discuss the evaluation. The negative performance evaluations will have an impact on the award of future Task Orders. The contractor shall request a performance evaluation prior to final invoice and closeout to keep for future proposal submissions.

Contractor's performance will be evaluated using the respective contractor performance evaluation report entry system located on the website <https://www.cpars.gov/>. Prior to commencement of work the contractor is required to provide the government with the name, phone number and e-mail address of the "Contractor's Representative" that will be responsible for receipt and review of draft performance evaluations prepared by the government in the appropriate system. It is the contractor's responsibility to keep this contact information current.

31. EMPLOYMENT ELIGIBILITY VERIFICATION (E-VERIFY)

Statutes and Executive orders require employers to abide by the immigration laws of the United States and to employ in the United States only individuals who are eligible to work in the United States. In accordance with FAR Clause 52.222-54, Employment Eligibility Verification, this contract requires the use of E-Verify which provides an Internet-based means of verifying employment

eligibility of workers employed in the United States, but is not a substitute for any other employment eligibility verification requirements.

SECTION 00 73 02

CONTRACT ADMINISTRATION DATA (AUG 2025)

1. IDENTIFICATION OF PROCURING CONTRACTING OFFICER/ORDERING OFFICER

The Procuring Contracting Office (PCO) is located at the NAVFAC Southwest, Design & Construction Contracting Core, 750 Pacific Highway, San Diego, California, 92132. Overall administration of the basic contract will be the responsibility of the office. The PCO is responsible for the contract in its entirety and possesses complete authority to modify the terms of the basic contract. NAVFAC Southwest Contracting Officers and authorized ordering officers/individuals designated in writing will be responsible for ordering and administration of the individual Task Orders. The terms "Contracting Officer" and "Ordering Officer" may be used interchangeably when referring to individual Task Orders. All correspondence for the basic contract shall be addressed to the PCO and shall include the contract number assigned.

2. ADMINISTRATIVE CONTRACTING OFFICERS

Administrative Contracting Officers (ACO) will be designated, in writing, upon award of individual Task Orders. These individuals may include the Resident Officer In Charge of Construction (ROICC), Facilities Engineering Acquisition Division (FEAD), and Contracting Officer located where the work is to be accomplished.

These individuals will be responsible and possess the authority to act on behalf of the Government with respect to the specific Task Order.

All post award/administrative correspondence, i.e., insurance, California Preliminary Notices, etc., shall be addressed to the ACO for the specific Task Order to which it relates. Additionally, all correspondence and Task Orders/modifications, etc. shall include both the Task Order number and the Proposed Task Order (PTO) number as applicable.

3. CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The COR for the basic contract functions as the technical representative of the Contracting Officer in the administration of the basic contract, providing technical direction and discussion as necessary, with respect to the specifications or statement of work, and monitoring the performance of work under the contract.

The Contracting Officer hereby designates the following individual as COR for the basic contract:

Name: Matt Acuff
Mailing Address: Naval Facilities Engineering Systems Command Southwest
Design and Construction Acquisition Readiness 750 Pacific Highway, San Diego, California 92132
Phone Number: (619) 705-4689
Email Address: matthew.c.acuff.civ@us.navy.mil

The COR for each Task Order will be designated, in writing, upon award of individual Task Orders. Each Task Order COR functions as the technical representative for the administration of the individual Task Order and provides technical direction as necessary, with respect to the specifications or statement of work for the Task Order. Each Task Order COR will monitor the performance of the work on assigned Task Orders.

CORs are not authorized to take any action, either directly or indirectly, that could result in a change in the pricing, quantity, quality, place of performance, delivery schedule, or other terms and conditions of the basic contract or Task Orders, or to direct the accomplishment of efforts which would exceed the scope of the basic contract or Task Orders.

If the contractor believes that a COR's interpretation of specifications is erroneous, the contractor shall notify the responsible Contracting Officer in writing of this position.

4. OMBUDSMAN

The Task and Delivery Order Ombudsman for the Department of the Navy (DoN) is the Deputy Assistant Secretary of the Navy - Procurement (DASN (P)). The Ombudsman is responsible for reviewing complaints from contractors and ensuring that all contractors are afforded a fair opportunity to be considered for award of Task Orders, in accordance with the requirements of the contract. The DASN (P) is located at 1000 Navy Pentagon, Washington, DC 20350-1000; phone: (703) 614-9600; fax: (703) 614-9394; and email:

NCAG@navy.mil.

SECTION 00 73 03

TASK ORDER ISSUANCE PROCEDURES (AUG 2025)

If this contract contains multiple awardees, the issuance procedures stated herein are applicable.

1. GENERAL

a. When the Government requires work under the contract, a Request for Quote (RFQ) or Request for Proposal (RFP) will be issued as appropriate. RFQ/RFP will normally be issued electronically by email but may be placed via mail, telephone, facsimile, or other electronic means.

b. Task Orders will be awarded on DD Form 1155 (Order for Supplies or Services). Task Orders will be placed in a sequential numbering system, which relate back to the basic contract number and the assigned Proposed Task Order (PTO) Number.

c. The Government will not be obligated to reimburse the contractor for work performed, items delivered, or any costs incurred, nor shall the contractor be obligated to perform, deliver, or otherwise incur costs, except as authorized by duly executed Task Orders.

d. Each Task Order shall include as a minimum:

- (i) Date of order.
- (ii) Contract number and order number.
- (iii) Contract item number and description, quantity, and unit price or estimated cost.
- (iv) Delivery or performance schedule.
- (v) Place of performance.
- (vi) Any packaging, packing, and shipping instructions.
- (vii) Accounting and appropriation data.
- (viii) Method of payment and payment office.

e. Modifications to Task Orders will be issued on Standard Form (SF) 30.

f. Each Contractor is required to submit a reasonable number of good faith proposals for PTOs. Contractors are not obligated to propose on all Task Orders; however, they are required to contact the Contracting Officer at least two days prior to the site visit if they cannot participate in the walk through, or within five days of the proposal due date if they cannot submit an offer. Failure to provide this notification may impact future consideration for PTOs and exercise of an option.

g. In accordance with FAR 16.505(a)(10), no protest under Subpart 33.1 is authorized in connection with the issuance or proposed issuance of an order under a Task Order Contract except for a protest on the grounds that the order increases the scope, period, or maximum value of the contract; or a protest of an order valued in excess of \$35,000,000.

2. COMPETITION

a. Competition for issuance of Task Orders is limited to those awardees under this contract. All awardees will be given a fair opportunity to be considered for each Task Order unless the Contracting Officer applies one of the exceptions noted below. Upon determining the need to issue a Task Order, all awardees will be considered equally against the stated criteria. In the case of a task order in excess of \$6,000,000, the requirements to provide all contractors a fair opportunity to be considered under 10 U.S.C. Sec. 3406 (c) is not met unless all such contractors are provided, at a minimum, a notice of the task order that includes a clear statement of the agency's requirements; a reasonable period of time to provide a proposal in response to the notice; disclosure of the significant factors and subfactors, including cost or price, that the agency expects to consider in evaluating such proposals, and their relative importance; in the case of an award that is to be made on a best value basis, a written statement documenting the basis for the award and the relative importance of quality and price or cost factors; and an opportunity for a post-award debriefing consistent with the requirements of section 3304 of Title 10, United States Code.

b. Unless one of the exceptions noted below applies, each Task Order will be awarded, as a result of competition to the contractor whose offer is the most advantageous to the Government considering the criteria specified.

c. The Contracting Officer reserves the right to make award of a Task Order without competition based upon:

(1) One of the circumstances described below:

(i) The agency need for the supplies or services are so urgent that providing a fair opportunity would result in unacceptable delays;

- (ii) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized;
 - (iii) The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order; or
 - (iv) It is necessary to place an order to satisfy a minimum guarantee; or
 - (v) In accordance with section 1331 of Public Law 111-240 (15 U.S.C. 644 (r)), contracting officers may, at their discretion, set aside orders for any of the small business concerns identified in 19.000(a)(3). When setting aside orders for small business concerns, the specific small business program eligibility requirements identified in part 19 apply.
- (2) A statute expressly authorizes or requires that the purchase be made from a specific source.

3. REQUIREMENT FOR PROPOSALS

- a. Task Orders will be firm fixed price with a specific completion date or performance period and clearly define the specific services to be performed or the performance desired. When Options are included in the Schedule, the Task Order will specify the number of days after award for exercising the Options. Each Task Order will contain applicable clauses and provisions. All Task Orders are subject to the terms and conditions of this contract. In the event of conflict between a Task Order and this contract, the contract will control, except as otherwise noted in the contract documents. The Government reserves the right to incorporate additional clauses, as appropriate, into individual Task Order solicitations and awards.
- b. Task Orders may be awarded on the basis of price only or Best Value. The two best value source selection approaches are lowest price technically acceptable (LPTA) or Tradeoff process. As a minimum, price shall be evaluated on all MACC Task Orders. Past Performance on earlier MACC Task Orders should be considered in all award decisions. The basis for award will be stated in the PTO.
 - (1) Tradeoff process is the preferred method for design-build requirements.
 - (2) LPTA should be considered for design-bid-build requirements and for design-build requirements where there is a facility UFC requirement (e.g., CDC) that provides descriptive design requirements. If LPTA is used, the selected evaluation factor(s) should not duplicate what was used to select contractors for the MACC, but should be specific to the project. For any concerns on how a MACC was procured, contact the Contracting Officer's Representative (COR) for the basic contract.
 - (3) For non-complex design-bid-build or design-build requirements with a value of less than \$10 million and that do not necessarily require a technical factor, the Contracting Officer may choose to consider only price for award purposes. Price only should be used sparingly and only if a project is not complex. In addition, if the project is design-build and utilizes a MACC that did not evaluate a design firm, low price should not be used.
- c. Whenever possible, award will be made without discussions. If discussions are required, each contractor will be requested to provide a final proposal revision, unless eliminated from discussions through the establishment of a competitive range. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.
- d. Task Order projects may be non-complex performance oriented tasks requiring minimal design, may be complex construction requiring design development for design-build construction, or a combination thereof. Projects will be varying in size and complexity. The Task Orders may be written based on a Government/Contractor Team cooperative scoping of the work in order to develop a mutually agreed upon Statement of Work. The Task Order may or may not have traditional plans and specifications but may include sketches, requests for catalog cuts, and other submittals.
- e. Price: Each PTO will indicate the detail of pricing information to be provided. Normally, a competitive PTO will require only a lump sum or unit price offer, but the Contracting Officer reserves the right to obtain a more detailed cost breakdown of labor, materials, equipment, overhead, and profit at any time. In case of discrepancy between a unit price/cost and an extended price/cost, the unit price/cost will be presumed to be correct, subject, however, to correction to the same extent and in the same manner as any other mistake.
- f. Technical proposals, if required, may address one or more of the following factors:
 - Design
 - The contractor's technical understanding of the work
 - The most efficient and effective plan to accomplish the work
 - Rationale for proposed materials, type and quantities
 - Key Personnel/Major Subcontractor
 - Sustainable design features

- Total ownership costs

g. Oral presentations may be used to substitute for, or augment, written information and are subject to the same restrictions as written information.

h. Design Build Task Order: A RFP may be issued with the Target Award Amount/Contract-to-Budget Amount for design and construction along with, but not limited to, a Statement of Work, Design Criteria and or concept design. The contractors may be requested to submit a concept design along with a price proposal. Task Orders will be issued with a firm fixed price for design and construction. It is the Contractor's responsibility to design the project so that it can be constructed within the fixed price contract value. Failure to do so is at the Contractor's risk.

4. SELECTION CRITERIA

One or more of the following criteria in addition to Price or Cost may be considered when contractors compete for award of a Task Order:

- (a) Experience
- (b) Safety
- (c) Technical Solution
- (d) Energy and Sustainable Design
- (e) Past Performance

5. RATING SCHEME AND DEFINITIONS:

If Best Value Tradeoff Process or Lowest Price Technically Acceptable Process or Price Only is used to award a Task Order, the rating scheme and definitions will be specified in the Task Order RFP.

SECTION 00 73 04

NAVFAC LANGUAGE (AUG 2025)

1. AUTHORITY

- a. No person other than the Contracting Officer has authority to bind the Government with respect to this contract.
- b. No action or omission of any government employee or representative other than the Contracting Officer shall increase or decrease the scope of this contract or shall otherwise modify the terms and conditions of this contract.
- c. In no event shall any of the following be effective or binding on the Government or imputed to the Contracting Officer with respect to this contract:
 - (1) An understanding or agreement between the Contractor and anyone other than the Contracting Officer;
 - (2) A purported modification or change order issued by anyone other than the Contracting Officer;
 - (3) A promise by anyone other than the Contracting Officer to provide additional funding or make payments; or
 - (4) An order, direction, consent, or permission from anyone other than the Contracting Officer to:
 - (i) Incur costs in excess of a specified estimated cost, allotment of funds, or other ceiling; or
 - (ii) Expend hours in excess of a specified level of effort.

(End of NAVFAC language)

2. PHASED CONSTRUCTION SCHEDULE *

Within the overall project schedule, commence and complete the work in phases. Complete each phase of the work within the number of days stated in the following schedule:

- a. Schedule start day: The day designated as the beginning of a particular phase; the number listed is the number of days from the award of contract.
- b. Completion day: The day designated as the end of a given phase and the day the work in that phase must be completed; the number listed is the number of days from the award of the contract.
- c. Schedule:

Phase	Description	Schedule Start Day	Completion Day
A	[_____]	[_____]	[_____]
B	[_____]	[_____]	[_____]
C	Completion of remaining	[_____]	[_____]

[Contracting Officer to insert start and completion day for each phase. The completion day of the last phase must be the same number as indicated in FAR 52.211-10, Commencement, Prosecution, and Completion of Work.]

d. If the work of a particular phase is complete and accepted before the scheduled completion day, immediately begin work on the subsequent phase unless otherwise restricted.

(End of NAVFAC language)

***See individual task order for specific information, if applicable.**

3. ALL OR NONE OFFERS *

Offers are solicited on an "all or none" basis and FAR 52.215-1, INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION in Section 00 70 00, is hereby modified. Failure to submit offers for all line items listed shall be cause for rejection of the offer.

(End of NAVFAC language)

***See individual task order for specific information, if applicable.**

4. NOTICE OF BONDING REQUIREMENTS *

Within 15 days (unless otherwise stipulated on the individual task order) after receipt of award of a task order, the bidder/offeror to whom the award is made shall furnish the bonds required by FAR Clause 52.228-15.

Bidders/offerors are hereby notified that the contract time for purposes of fixing the completion date, default, and liquidated damages will be as stated in FAR Clause 52.211-10 Commencement, Prosecution, and Completion of Work, regardless of when performance and payment bonds or deposits in lieu of surety are executed.

(End of NAVFAC language)

***See individual task order for specific information.**

5. UTILITIES FOR CONSTRUCTION AND TESTING *

The Contractor shall be responsible for obtaining, either from available Government sources or local utility companies, all utilities required for construction and testing. The Contractor shall provide these utilities at his expense, paid for at the current utility rate delivered to the job site. The Contractor shall provide and maintain all temporary utility connections and distribution lines, and all meters required to measure the amount of each utility used.

(End of NAVFAC language)

***See individual task order for specific information, if applicable.**

6. LEAD DESIGN FIRM(S)

The Contractor shall use the following lead design firm(s) to perform the services required under this contract. No substitution will be made without the approval of the Contracting Officer, after review of the proposed replacement's experience and qualifications with an explanation of the necessity for the change. A contract modification will be issued to incorporate the lead design firm(s) substitution(s).

Lead Design Firm(s):

* XXXXXXXXXXXXXXXX

***Lead Design Firm Name(s) will be filled in at time of award of basic contract.**

(End of NAVFAC language)

7. SUBSTITUTIONS OF LEAD DESIGN FIRM(S)

The Contractor shall submit in writing to the Contracting Officer a request for substitution of a Lead Design Firm/Subcontractor with an explanation for requiring this change. The Contracting Officer will issue a request for proposal and any additional required information for evaluation of the proposed substitute (s). The proposed substitute(s) must have comparable qualifications to the firm(s) being replaced. The Contracting Officer will notify the Contractor after receipt of all required information of the approval on the substitution(s).

A contract modification will be issued to incorporate the lead design firm(s) substitution(s). Only substitutions of the listed lead design firm(s) will be authorized. No addition(s) will be authorized.

(End of NAVFAC language)